

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF MATSKEVICH v. RUSSIA

(Application no. 25622/21)

JUDGMENT

STRASBOURG

13 October 2022

This judgment is final but it may be subject to editorial revision.



In the case of Matskevich v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Darian Pavli, *President,*
Andreas Zünd,
Frédéric Krenc, *judges,*

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 15 September 2022,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in an application against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on 1 March 2021.

2. The Russian Government ("the Government") were given notice of the application.

THE FACTS

3. The applicant's details and information relevant to the application are set out in the appended table.

4. The applicant complained of the unlawful detention (deprivation of liberty). He also raised other complaints under the provisions of the Convention.

THE LAW

I. ALLEGED VIOLATION OF ARTICLE 5 § 1 OF THE CONVENTION

5. The applicant complained that the administrative escorting and arrest procedures and his ensuing detention had been in contravention of Article 5 § 1 of the Convention, which, in so far as relevant, reads as follows:

> "1. Everyone has the right to liberty and security of person. No one shall be deprived of his liberty save in the following cases and in accordance with a procedure prescribed by law:
>
> ...
>
> (c) the lawful arrest or detention of a person effected for the purpose of bringing him before the competent legal authority on reasonable suspicion of having committed an offence or when it is reasonably considered necessary to prevent his committing an offence or fleeing after having done so; ..."

6. The Court has previously examined complaints brought by persons arrested and detained in similar circumstances in Russia. Having examined the applicable domestic regulations, the Court established that, under the Russian law, the escorting to a police station and ensuing detention there for the purpose of preparing an administrative arrest record would be permissible

only if such record could not be drawn up at the place where the alleged offence had been discovered. The law also required that such escorting and detention be an "exceptional case" and necessary for the prompt and proper examination of the alleged administrative case or to secure the enforcement of any penalty to be imposed (see, for example, *Navalnyy v. Russia* [GC], nos. 29580/12 and 4 others, § 71, 15 November 2018). The authorities' failure to comply with those requirements, in the Court's view, led to it finding a violation of Article 5 § 1 of the Convention (see, in particular, *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019).

7. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion on the admissibility and merits of these complaints. The Court discerns nothing in the official records submitted for it to conclude that recourse to such procedures was justified, as required by Russian law. It concludes that that the national authorities failed to comply with applicable rules of domestic procedure and considers that the applicant's arrest and detention were not "in accordance with a procedure prescribed by law".

8. These complaints are therefore admissible and disclose a breach of Article 5 § 1 of the Convention.

II. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

9. The applicant submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its well-established case-law (see *Karelin v. Russia*, no. 926/08, 20 September 2016, concerning examination of criminal cases in the absence of a prosecuting party in the judicial proceedings governed by the Federal Code of Administrative Offences, and *Frumkin v. Russia*, no. 74568/12, 5 January 2016, concerning disproportionate measures taken by the authorities against organisers and participants of public assemblies, and *Novikova and Others v. Russia*, nos. 25501/07 and 4 others, 26 April 2016, concerning disproportionate measures taken by the authorities against participants of solo manifestations).

10. In view of the above findings under, the Court considers that there is no need to deal separately with the applicants' complaints under Article 6 of the Convention concerning alleged restrictions on the right to examine witnesses.

III. APPLICATION OF ARTICLE 41 OF THE CONVENTION

11. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

12. Regard being had to the documents in its possession and to its case-law (see, in particular, *Saidov v. Russia [Committee],* no. 31872/19, § 23, 26 July 2022), the Court considers it reasonable to award the sum indicated in the appended table.

13. The Court further considers it appropriate that the default interest rate should be based on the marginal lending rate of the European Central Bank, to which should be added three percentage points.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Declares* the complaints concerning the unlawful detention (deprivation of liberty) and other complaints raised under the well-established case-law of the Court (as indicated in the appended table) admissible and *finds* that it is not necessary to examine separately complaints under Article 6 of the Convention concerning alleged restrictions on the right to examine witnesses;

2. *Holds* that this application discloses a breach of Article 5 § 1 of the Convention concerning the unlawful detention (deprivation of liberty);

3. *Holds* that there has been a violation of the Convention as regards the other complaints raised under well-established case-law of the Court (see appended table);

4. *Holds*
   (a) that the respondent State is to pay the applicant, within three months, the amount indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amount at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 13 October 2022, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Darian Pavli
Acting Deputy Registrar	President

APPENDIX

Application raising complaints under Article 5 § 1 of the Convention (unlawful detention (deprivation of liberty))

Application no. Date of introduction	Applicant's name Year of birth	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
25622/21 01/03/2021	**Aleksandr Yevgenyevich MATSKEVICH** 1967	29/05/2020 (around 4 p.m.), 25/12/2020 (unspecified time after 4 p.m.), 31/01/2021 (6 p.m.)	29/05/2020 (7.30 p.m.), 25/12/2020 (unspecified time), 31/01/2021 (unspecified time)	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019). Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018).	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - for all administrative proceedings (see below), Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under article 20.2 § 8 of CAO for participation in manifestation on 25/12/2020 in front of the Golovinskiy and Koptevskiy District Courts of Moscow; fine of RUB 150,000, Moscow City Court 30/03/2021 (final); Conviction under article 20.2 § 8 of CAO for participation in manifestation in support of Mr Navalnyy on 31/01/2021, 20-days' administrative detention, Moscow City Court 04/02/2021, Art. 10 (1) - disproportionate measures against solo demonstrators - Solo demonstration in support of Ilya Azar in Moscow on 29/05/2020, charges under article 20.2 § 5 of CAO, fine of RUB 20,000 (final domestic decision – Moscow City Court, 18/09/2020). Rotation - event classified as assembly post facto.	5,000

[1] Plus any tax that may be chargeable to the applicant.